

STATE OF NEW YORK

10307--B

Cal. No. 379

IN ASSEMBLY

February 20, 2026

Introduced by M. of A. PAULIN, GRIFFIN -- read once and referred to the Committee on Codes -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading -- again amended on third reading, ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the executive law, in relation to notification to local law enforcement of firearm denials

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph (a) of subdivision 2 of section 228 of the executive law, as added by chapter 371 of the laws of 2022, is amended and a new subdivision 2-a is added to read as follows:

(a) The division shall report the name, date of birth and physical description of any person prohibited from possessing a firearm pursuant to 18 U.S.C. sec. 922(g) or (n), and the reason for any denial, to the national instant criminal background check system index, denied persons files.

2-a. (a) Within two business days of making the report described in paragraph (a) of subdivision two of this section, the division shall report the name, date of birth, physical description, and the reason for the denial to:

i. the local law enforcement agency having jurisdiction over the location where the prohibited person sought to acquire the firearm; and

ii. the local prosecutor having jurisdiction over the location wherein the prohibited person sought to acquire the firearm.

(b) The local law enforcement agency shall initiate a criminal investigation within five business days of receiving such report from the division.

§ 2. This act shall take effect on the sixtieth day after it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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